

Requests for Judicial Notice. Respondents request that the Court take judicial notice of the Petition and Answer filed in this matter. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

The Verified Petition for Writ of Mandate includes a single cause of action for Violation of the California Public Records Act. Specifically, Petitioner alleges that Respondents failed to perform a diligent search, arbitrarily limited or expanded the scope to avoid compliance, did not assist Petitioner despite detailed clarifications and offers to discuss, withheld record without justification, and exceeded statutory timelines without valid extensions. The CPRA Request is listed in ¶ 11 as being submitted “On or about November 2025.” *Verified Petition*, ¶ 11. The CPRA request from November of 2025 was numbered by the City of Redding as PRR-2025-401. *Dec. Elaina Short* ¶ 5-6, Ex. C-1. Petitioner’s UMF 1 lists the CPRA request as being dated December 23, 2025. For supporting evidence, Petitioner lists “Declaration of Allen McCloskey ¶ 3; Exhibit A.” The Declaration of Allen McCloskey in Support of Motion for Summary Judgment contains a December 23, 2025 letter as Exhibit A. This same letter is provided by Respondents as Exhibit B-7. This is a separate CPRA request was assigned the number of PRR-2025-476. The Verified Petition in this matter was filed on December 19, 2025. The CPRA request listed in the Separate Statement was submitted on December 23, 2025. The CPRA request that forms the basis of the Verified Petition for Writ of Mandate is a separate and distinct CPRA request from the CPRA request listed in Petitioner’s Separate Statement and was not submitted to the City of Redding until after the Verified Petition was filed.

The pleadings define the issues addressed in a summary judgment motion. *Lewis v. Chevron U.S.A., Inc.* (2004) 119 Cal. App. 4th 690.

Every motion for summary judgment should be accompanied by a separate statement setting forth plainly and concisely all the material facts that the moving party contends are undisputed. This court has stated, “One of the purposes of the separate statement requirement is to inform the opposing party of what issues and undisputed material facts they must address in order to defeat the motion. [Citation.]” (*Elcome v. Chin* (2003) 110 Cal.App.4th 310, 322 [1 Cal. Rptr. 3d 631].) Similarly, in *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 [125 Cal. Rptr. 2d 499], the court explained, “ ‘The due process aspect of the separate statement requirement is self evident—to inform the opposing party of the evidence to be disputed to defeat the motion.’ [Citation.] [¶] Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail.”

Deveny v. Entropin, Inc. (2006) 139 Cal. App. 4th 408, 432.

Petitioner cannot obtain summary judgment for a CPRA request that is not part of the Verified Petition for Writ of Mandate.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Motion to Quash Subpoena Duces Tecum: Plaintiffs, Fredrick Phillips and Heather Phillips, move to quash two subpoenas duces tecum issued to Plaintiffs respective medical providers. Defendants, Prime Healthcare Services-Shasta, LLC dba Shasta Regional Medical Center and Prime Healthcare Services, Inc. oppose the motion.

The subpoena regarding Heather Phillips' medical records was withdrawn by Defendants, therefore the motion regarding the subpoena issued to Mercy Medical Center is denied as moot.

Procedural Defects. As a preliminary matter, Defendants argue that the motion should be denied because Plaintiffs failed to serve all parties, specifically Defendant City of Redding. Proofs of service by mail of the motion were filed on May 29, 2026, for all parties who have made a general appearance. Generally, all moving and supporting papers are required to be served at least 16 court days before the hearing. This time is extended by 5 days when service is by mail. CCP § 1005. Here, the proofs of service indicate service was made by mail on May 26, 2026, which is untimely for today's hearing. The Court notes Plaintiffs subsequently filed an amended notice of motion, and the proofs of service for the amended motion also indicate service was untimely.

Additionally, Defendants raise that Plaintiffs failed to file a separate statement in compliance with CRC 3.1345. Any motion involving the content of a discovery request must be accompanied by a separate statement, including a motion to quash the production of documents. CRC 3.1345. Here, Plaintiffs failed to file a separate statement. In the interests of reaching the merits, the Court will overlook the procedural defects.

Meet and Confer. CCP § 2016.040 requires the filing of a declaration showing facts that a reasonable, good faith attempt was made to informally resolve the issues presented. Defendants raise that Plaintiffs failed to properly meet and confer prior to filing the motion. The Court finds the meet and confer efforts to be sufficient.

Merits. The subpoena at issue seeks all of Plaintiff, Fredrick Phillips', medical records from UC Davis for the period of January 1, 2015, to present. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. Generally, privileged information is not discoverable. CCP § 2017.010. However, Evid. Code § 996 provides that there is no physician-patient privilege as to communications relevant to an issue concerning the condition of the patient if the issue is tendered by the patient.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

Davis v. Superior Ct. (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff's causes of action are factually predicated on his diagnosis of Hemophilia A and his severe chronic joint damage and mobility impairment. Defendants are attempting to subpoena medical records from Plaintiff's medical provider. Plaintiff has a right of privacy in his medical records. However, by filing the present suit he has waived any right in these records that are directly relevant to whether Plaintiff's prior existing medical conditions contributed to or caused the subject injuries. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions. Defendants have requested sanctions against Plaintiffs based on alleged misuses of the discovery process for failing to meet and confer in good faith and making or opposing motions without substantial justification. CCP § 2023.010(h) & (i). While Defendant has ultimately prevailed in opposing the motion, Plaintiffs have shown that the parties met and conferred on the issues and that there was substantial justification to bring the motion. The request for sanctions is denied.

The motion is **DENIED**. The request for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's ruling.

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 15, 2026 to Plaintiff Amanda Kristeen Webb for her failure to appear at the prior hearing on May 11, 2026. No response has been filed. Without any explanation for her failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff. The clerk is instructed to prepare a separate order of sanctions. The Court will issue an Order to Show Cause Re: Dismissal to Plaintiff pursuant to Gov't Code §68608(b) for her failure to appear at the prior hearing on May 11, 2026 and to appear at today's hearing on June 22, 2026. The Order to Show Cause Re: Dismissal is set for **Monday, September 21, 2026, at 8:30 a.m. in Department 63.** Today's review hearings set for 9:00 a.m. is continued to **Monday, September 21, 2026, at 9:00 a.m. in Department 63** for trial re-setting.

WEBB VS. BIRD MICRO-ELECTRIC MOBILITY, ET AL.

CASE NUMBER: 25CV-0208413

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 6, 2026 to Plaintiff Michelle Webb and her counsel for their failure to timely serve all Defendant as required by CRC 3.110(b) and for their failure to timely enter default of Defendant Bird Rides, Inc. No response to the OSC was filed; however, Plaintiff's counsel did file a declaration on May 8, 2026, requesting a continuance of the trial dates. It appears the declaration was prepared and submitted before Plaintiff received the present OSC. Based on the information provided in the May 8 declaration, the Court will DISCHARGE the OSC. The Court sets this matter for **Monday, August 24, 2026, at 9:00 a.m. in Department 63** for review regarding status of service. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. GILLIS

CASE NUMBER: 23CVG-00548

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation: Plaintiff Wells Fargo Bank, N.A. seeks to vacate the dismissal entered on November 27, 2023 and enforce the Stipulation for Entry of Judgment attached as Exhibit 1 to the Declaration of Edgar B. Lopez. Despite being properly noticed, Defendant Lauren Taylor Gillis did not file an Opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*